



QUEENS COUNTY DISTRICT ATTORNEY

125-01 QUEENS BOULEVARD
KEW GARDENS, NEW YORK 11415-1568

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DISTRICT ATTORNEY

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The following information is provided pursuant to the People's obligations under CPL §245.20(k) and is obtained from the files of the Queens County District Attorney's Office as well as from data maintained by the New York City Police Department. Additionally, in a spirit of full disclosure consistent with our obligations under CPL §§245.20(7) and 245.55, additional material obtained from non-law enforcement sources may also be included below. The fact that this additional information is hereby disclosed is not to be taken as a concession that its disclosure is compelled under CPL Article 245.

The information below pertains to **MOS ERIC CARNEY Tax No. 948748** whom the People intend to call as a witness:

NYPD Disciplinary Information:

THE PEOPLE ARE AWARE OF THE FOLLOWING SUBSTANTIATED, UNSUBSTANTIATED, OR PENDING DISCIPLINARY ALLEGATIONS, AND/OR LABORATORY NON-CONFORMANCE ALLEGATIONS AGAINST THIS OFFICER:

1. Disclosure

DATE: 09/16/2017

I/A 2017-36038

ALLEGATION: MISSING PROPERTY - FROM PERSON - PRISONER

DISPOSITION: UNSUBSTANTIATED

ALLEGATION: FAIL TO PROVIDE OWNER WITH COPY OF VOUCHER

DISPOSITION: UNSUBSTANTIATED

ALLEGATION: FAIL TO SAFEGUARD - NOT VOUCHERED PRISONER PROP - OTHER PROPERTY

DISPOSITION: UNSUBSTANTIATED

ALLEGATION: FAIL TO SAFEGUARD - VOUCHERED PRISONER PROPERTY - VEHICLE

DISPOSITION: UNSUBSTANTIATED

UNIT ASSGN: GROUP 27

CASE CLOSED: 10/01/2018

2. Disclosure

DATE: 09/27/2018

IAB LOG # : 18-37529

ICMT CASE # : OG18-19387

REFERRED TO : 413 - HIGHWAY UNIT # 3

ALLEGATION : OTHER DEPT RULES/PROCEDURES VIOLATION

DISPOSITION: UNSUBSTANTIATED

CLOSED DATE : 2018-12-04

ACTION TAKEN : VERBAL OF INSTRUCTIONS

3. Disclosure

DATE: 05/28/2019

IAB LOG # : 19-20541

ICMT CASE # : M19-1186

REFERRED TO : 840 - TRANSPORTATION BUREAU
ALLEGATION : DISPUTED STOP OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN
DISPOSITION: UNSUBSTANTIATED
CLOSED DATE : 2021-03-03
ACTION TAKEN : NO ACTION TAKEN

4. Disclosure

DATE: 11/22/2019
IAB LOG # : 19-41838
ICMT CASE # : FI19-1206
REFERRED TO : 840 - TRANSPORTATION BUREAU
ALLEGATION : FAIL TO TAKE POLICE ACTION - ON OTHER INCIDENT
DISPOSITION: SUBSTANTIATED
ALLEGATION : ON DUTY TRAFFIC INCIDENT - VEHICLE PURSUIT - FAIL TO NOTIFY RADIO DISPATCH
DISPOSITION: SUBSTANTIATED
ALLEGATION : OTHER DEPT RULES/PROCEDURES VIOLATION- CREATED A FALSE NARRATIVE TO SUPERVISOR OF EVENT
DISPOSITION: SUBSTANTIATED
ALLEGATION : FAIL TO NOTIFY – SUPERVISOR
DISPOSITION: SUBSTANTIATED
ALLEGATION : BODY WORN CAMERA - FAIL TO ACTIVATE
DISPOSITION: SUBSTANTIATED
ALLEGATION : ON DUTY TRAFFIC INCIDENT - VEHICLE PURSUIT - FAIL TO TERMINATE
DISPOSITION: SUBSTANTIATED
CLOSED DATE : 2021-03-02
ACTION TAKEN : NO ACTION TAKEN

5. Disclosure

DATE: 03/19/2020
I/A: 2020-8549
ALLEGATION: MISSING PROPERTY - FROM PERSON - PRISONER
DISPOSITION: UNSUBSTANTIATED
UNIT ASSIGNED: G27
DISPOSITION: UNSUBSTANTIATED
CASE CLOSED: 04/19/2021 (GL)

6. Disclosure

DATE: 09/01/2020
DADS# 2020-22046

1. SAID POLICE OFFICER ERIC CARNEY, WHILE ON-DUTY AND ASSIGNED TO HIGHWAY UNIT 3, ON OR ABOUT NOVEMBER 20, 2019, IN QUEENS COUNTY, FAILED AND NEGLECTED TO NOTIFY THE RADIO DISPATCHER OF A VEHICLE PURSUIT.
2. SAID POLICE OFFICER ERIC CARNEY, WHILE ON-DUTY AND ASSIGNED TO HIGHWAY UNIT 3, ON OR ABOUT NOVEMBER 20, 2019, IN QUEENS COUNTY, FAILED AND NEGLECTED TO TERMINATE A VEHICLE PURSUIT WHEN THE RISK TO UNIFORMED MEMBERS OF THE SERVICE AND THE PUBLIC OUTWEIGHED THE DANGER TO THE COMMUNITY IF THE SUSPECT WAS NOT IMMEDIATELY APPREHENDED.
3. SAID POLICE OFFICER ERIC CARNEY, WHILE ON-DUTY AND ASSIGNED TO HIGHWAY UNIT 3, ON OR ABOUT NOVEMBER 20, 2019, IN QUEENS COUNTY, FAILED TO IMMEDIATE RENDER ALL NECESSARY

POLICE SERVICES AFTER WITNESSING A THREE (3) VEHICLE COLLISION.

5. SAID POLICE OFFICER ERIC CARNEY, WHILE ON-DUTY AND ASSIGNED TO HIGHWAY UNIT 3, ON OR ABOUT NOVEMBER 20, 2019, IN QUEENS COUNTY, WRONGFULLY ENGAGED IN CONDUCT PREJUDICIAL TO THE GOOD ORDER, EFFICIENCY OR DISCIPLINE OF THE DEPARTMENT, TO WIT: SAID POLICE OFFICER FAILED TO PROVIDE HIS SUPERVISOR, SERGEANT MCCARREN, PERTINENT FACTS REGARDING THE VEHICLE PURSUIT.

*DISPOSITION: 1. GUILTY. 2. GUILTY. 3. GUILTY. 5. GUILTY. (PLEA).

DISMISSAL PROBATION: 12.00 - IT IS RECOMMENDED THAT THE RESPONDENT BE DISMISSED FROM THE NEW YORK CITY POLICE DEPARTMENT, BUT THAT THE DISMISSAL BE HELD IN ABEYANCE FOR A PERIOD OF ONE YEAR, PURSUANT TO SECTION 14-115(D) OF THE ADMINISTRATIVE CODE, DURING WHICH TIME THE RESPONDENT IS TO REMAIN ON THE FORCE AT THE POLICE COMMISSIONERS DISCRETION AND MAY BE TERMINATED AT ANY TIME WITHOUT FURTHER PROCEEDINGS. VACATION DAYS 60.00 - IT IS RECOMMENDED THAT THE RESPONDENT FORFEIT THE AMOUNT OF VACATION DAYS AS INDICATED.

10/4/21.

Civilian Complaint Review Board Disciplinary Information:

FOR CCRB DISCIPLINARY INFORMATION SEE THIS OFFICER'S SEPARATELY PROVIDED CCRB DOCUMENT WHICH DISCLOSES ANY CCRB INFORMATION THE PEOPLE HAVE ON SUBSTANTIATED, UNSUBSTANTIATED, PENDING, AND OTHER POTENTIAL MISCONDUCT NOTED (OPMN) ALLEGATIONS. NOTE, OPMN ALLEGATIONS DENOTE POTENTIAL MISCONDUCT OF WHICH CCRB DID NOT HAVE JURISDICTION OVER.

Please note, additional information regarding lawsuits may be available from a variety of public data bases including <https://www1.nyc.gov/site/law/public-resources/nyc-administrative-code-7-114.page> , <https://pacer.uscourts.gov/> , <https://iapps.courts.state.ny.us/webcivil/FCASMain> , and <https://iapps.courts.state.ny.us/nyscef/Login> ; additional CCRB information may be available at <https://www1.nyc.gov/site/ccrb/policy/MOS-records.page> ; and, additional NYPD disciplinary information may be available at <https://nypdonline.org/link/2> .

The People reserve the right to move *in limine* to preclude or limit reference to this information in any further proceedings in this prosecution.

Melinda Katz
District Attorney
Queens County